

**JUDGMENT SHEET  
IN THE LAHORE HIGH COURT LAHORE  
JUDICIAL DEPARTMENT**

**Writ Petition No. 68978 of 2021**

**Dr. Maha Fatima Tariq  
Versus**

**Government of Punjab through Chief Secretary, Lahore &  
others**

**J U D G M E N T**

Date of hearing: 22.12.2021.  
Petitioner by: Khawaja Tariq Sohail, Advocate.  
Respondents by: Barrister Ameer Abbas Ali Khan, A.A.G. along  
with Hamid Shahzad, Law Officer, Primary &  
Secondary Healthcare Department.

**MUHAMMAD SAJID MEHMOOD SETHI, J.-** Through instant petition, petitioner has sought direction from this Court for the respondent-authorities to issue appointment letter in her favour as Woman Medical Officer (“WMO”) (BS-17) w.e.f. 04.08.2021, being recommended / selected candidate, with the following prayer:-

“In view of the above submissions, it is, therefore, most respectfully prayed that the instant writ petition may kindly be allowed and appropriate directions may very graciously be issued to the concerned quarters to issue appointment orders of the petitioner w.e.f. 04.08.2021 by granting similar treatment as have been given qua the other Medical Officers etc. without any further delay and discrimination. The complete record of recruitment process conducted by DRC on 25/26 June 2021 may also be summoned in the safe administration of justice.”

2. Learned counsel for petitioner submits that petitioner, being eligible, applied for the post in question and was selected purely on merit vide letter dated 02.07.2021, after conducting interviews by the District Recruitment Committee (“DRC”), but respondents in violation of the rules and policy have notified the names of three other WMOs, whose names were even not reflected in the original merit list, however, petitioner was not notified without any lawful reason or

justification. He adds that impugned inaction on the part of respondent-authorities to issue appointment order in favour of petitioner is absolutely unsustainable in the eye of law. In support, he referred to Muhammad Asif Jan and others v. Chairman Selection through Chairman and others [2013 PLC (C.S.) 502], Tayyaba Komal v. District Coordination Officer, Sialkot and 4 others [2014 PLC (C.S.) 378], Jawad Ali and others v. Superintendent Jail and others [2017 PLC (C.S.) 587], Nazia Khan v. Province of Sindh through Secretary Education and 3 others [2020 PLC (C.S.) 101] and Rasheed-ud-Din and another v. Provincial Government through Chief Secretary, Gilgit-Baltistan, Gilgit and others [2020 PLC (C.S.) 1029].

3. When confronted, learned Law Officer could not rebut the above submission that petitioner was recommended by the DRC, but contends that petitioner was recommended against the post of Medical Officer and no appointment letter was issued to any Woman Medical Officer against the post of Medical Officer, thus, neither any discrimination was caused nor any right of appointment was accrued in favour of petitioner. He further submits that interview does not create vested right of appointment unless the process is finalized or appointment letter is issued.

4. Arguments heard. Available record perused.

5. Perusal of record shows that the Government of the Punjab, Primary & Secondary Healthcare Department, Lahore advertised vacant posts of MOs (639) / WMOs (441), to be appointed on purely ad hoc / temporary basis, in daily newspapers. Soon after the first advertisement, respondent-department published corrigendum in the newspaper clarifying that advertised posts will be filled according to vacant positions of each category in every district instead the number of posts mentioned against each category previously, purely on ad hoc / temporary basis as per terms & conditions advertised earlier. The DRC, headed by the Deputy Commissioner conducted interviews for appointment of suitable candidates against 51 posts of MOs and 04

posts of WMOs, lying vacant under Chief Executive Officer, District Health Authority, Lahore / respondent No.3 and recommended suitable candidates including the petitioner for appointment to the post in question vide letter dated 02.07.2021, relevant portion whereof is reproduced hereunder:-

**Subject: RECRUITMENT OF MEDICAL OFFICERS ON ADHOC BASIS THROUGH WALK IN INTERVIEW BY THE DISTRICT SELECTION COMMITTEE.**

I have the honour to enclose herewith the original merit list of eligible candidates selected by the District Recruitment / Selection Committee under the chairmanship of Deputy Commissioner / Administrator District Health Authority Lahore through walk-in interview dated 26<sup>th</sup> of June 2021 for recruitment against the posts of Medical Officers (BS-17) on adhoc basis in various Health facilities of District Health Authority, Lahore as detailed below:

| Sr.# | Name with parentage of selected candidates     | Name of post    | Selected for                                                 |
|------|------------------------------------------------|-----------------|--------------------------------------------------------------|
| ...  | ...                                            | ...             | ...                                                          |
| 48   | Dr. Maha Fatima Tariq D/o Khawaja Tariq Sohail | Medical Officer | Selected against the post of MO for Govt. Dispensary Rajgarh |
| ...  | ...                                            | ...             | ...                                                          |

The following documents are also attached as desired:

- Attested copy of I.D Card.
- Attested copy of Domicile.
- Attested copy of Matriculation Certificate.
- Attested copy of Intermediate Certificate.
- Attested copy of Graduation Degree / MBBS.
- Attested copy of Registration with PMDC.
- Attested copy of House Job Certificate.
- Attested copy of experience certificate.

It is therefore requested that necessary orders may please be issued for recruitment of above mentioned candidates to the posts of Medical Officers (BS-17) at the stations mentioned against each.”

6. It appears from the above reproduced letter that petitioner was selected for recruitment against the post of MO being eligible candidate, by the DRC and her name reflected in the original merit list

prepared by it. However, offers of appointment for the posts of WMO were issued to Dr. Maha Ikram and Dr. Ayesha Javed, vide order dated 11.08.2021 and Dr. Shamza Mehreen vide order dated 16.08.2021, however, petitioner was not appointed despite having been recommended and selected by the DRC, as mentioned above.

7. The undisputed merit list had created a vested right in favour of petitioner, which was required to be given due weight and regard as she developed legitimate expectation to be considered for appointment. No valid reason and implicit justification has been rendered for denying appointment to petitioner. The post in question was vacant and not abolished, thus, petitioner being successful and placed in the merit list, a vested right had been created in her favour for appointment as Woman Medical Officer. Reference can be made to Muhammad Imran v. Punjab Public Service Commission Lahore through Secretary and 3 others [2016 PLC (C.S.) 363], Muhammad Javeid and others v. Azad Jammu and Kashmir Government through Chief Secretary and others [2016 PLC (C.S.) 1130], Munawar Hassan v. Chief Secretary, Government of Balochistan and 3 others [2017 PLC (C.S.) 81] and Fatima v. Federation of Pakistan through Secretary Ministry of Commerce, Islamabad and 2 others [2018 PLC (C.S.) 292].

8. Needless to say that the respondent-authority, in the present case, has not exercised its powers in a fair and transparent manner, which has deprived a suitable candidate from employment for no fault of her own. Appointment in public sector is the trust in the hands of public functionaries and it is their moral duty to discharge their trust with zeal, efficiency and fairness as per law. Public authorities cannot be allowed to play havoc with the fate of the masses. Discretion vested with the public authorities should be exercised with reasonableness and nobody can be left unbridled to tinker with the future of the selected / recommended candidates. Therefore, the impugned inaction is against fundamental rights of petitioner

guaranteed under Articles 9, 18, 25 & 27 of the Constitution of the Islamic Republic of Pakistan, 1973.

9. It is argued that petitioner was recommended against the post of Medical Officer mistakenly, therefore, he could not be appointed against the post of Woman Medical Officer. Needless to say that petitioner cannot be subjected to discrimination and penalized for a wrong, lapse or ignorance on part of the department. Reference can be made to Collector of Customs, Lahore and others v. Messrs S. Fazal Ilahi and Sons through Proprietor (2015 SCMR 1488), Dr. Farhat Naz v. Chairman Selection / Promotion Board, Ayub Teaching Hospital, Abbottabad and others (2017 MLD 1842), Muhammad Arshad v. Province of Sindh through Chief Secretary, Government of Sindh and 9 others [2018 PLC (C.S.) Note 2], Managing Director, Public Procurement Regulatory Authority (PPRA) and another v. Muhammad Zubair and 6 others [2019 PLC (C.S.) 1348] and Kh. Aamir Ahmed v. Azad Government of the State of Jammu and Kashmir through Chief Secretary and 6 others (2021 YLR 1313).

10. In view of the above discussion, this petition is **allowed** and respondents are directed to issue appointment letter in favour of petitioner as per merit list of eligible candidates selected by the DRC, preferably within a period of **thirty days** from the date of receipt of certified copy of this order. Compliance report shall be furnished to this Court through Deputy Registrar (Judicial).

(Muhammad Sajid Mehmood Sethi)  
Judge

**APPROVED FOR REPORTING**

Judge

\*A.H.S.\*